

parties be *unequal* then in all cases a trust results to each of them in proportion to the amount originally subscribed (*c*).

6. **Copyhold grant to A. for life, and fine paid by B., who on B.'s death shall have it?** — If A. discharge the fine on a grant of *copyholds* to B., C., and D. successively for their lives, the equitable interest will result to A.; but should A. die intestate, on whom will the remaining equity devolve? Estates *pur autre vie* in copyholds were not within the Statute of Frauds (*d*), nor the 14 G. 2, c. 20, s. 9. (*e*), nor is there a general occupancy of a trust (*f*), and before the late Wills Act the questions were asked, Can the *heir* take an estate which has no descendible property? or can the *executor* claim as assets what is not of the nature of personalty? or shall the tenants of the legal estate become the beneficial proprietors in the absence of any one to advance a better title? (*g*) In *Clark v. Danvers* (*h*) the plaintiff was both *heir* and *executor* of the equitable owner, and was decreed the benefit of the trust. In *Howe v. Howe* (*i*) the administratrix was held entitled, and so it was allowed in *Rundle v. Rundle* (*j*), and *Withers v. Withers* (*k*), and was subsequently sanctioned by the high authority of Lord Mansfield (*l*). Now by the late Wills Act (7 W. 4, and 1 Vict. c. 26, s. 6.) it is declared, that, where there is no special occupant, an estate *pur autre vie* whether in freehold or in copyhold shall, if not disposed of by the will of the grantee, go to his personal representative (*m*).

[*166] * 7. **Purchase of a ship in stranger's name.** — The Court cannot imply a resulting trust in evasion of

(*c*) *Lake v. Gibson*, 1 Eq. Ca. Ab. 291, *per* Sir J. Jekyll; *Rigden v. Vallier*, 3 Atk. 735, *per* Lord Hardwicke; *Hill v. Hill*, 8 I. R. Eq. 140; affirmed *Ib.* 622.

(*d*) 29 Car. 2, c. 3, s. 12.

(*e*) *Rundle v. Rundle*, Amb. 152.

(*f*) *Penny v. Allen*, 7 De G. M. & G. 422; and see *Castle v. Dod*, Cro. Jac. 200.

(*g*) See *Jones v. Goodchild*, 3 P. W. 33, note B.

(*h*) 1 Ch. Ca. 310.

(*i*) 1 Vern. 415.

(*j*) 2 Vern. 252, 264; S. C. Amb. 152.

(*k*) Amb. 151.

(*l*) *Goodwright v. Hodges*, 1 Watk. Cop. 228; and see *Rumboll v. Rumboll*, 2 Eden, 15.

(*m*) *Reynolds v. Wright*, 25 Beav. 100; 2 De G. F. & J. 590. [Where leaseholds for lives were conveyed to trustees, their executors, administrators, and assigns in trust (in the events which happened) for certain persons absolutely but without words of limitation it was held in a case in Ireland,